

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1847 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Anthony Moore

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED
COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1847

By: Green of the Senate
and
Moore of the House

PROPOSED COMMITTEE SUBSTITUTE

[Medicaid home- and community-based services -
eligibility - effective date -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 56 O.S. 2021, Section 1017.3, is
amended to read as follows:

Section 1017.3. To be eligible for the ADvantage Waiver
Program, a person shall:

1. Qualify financially for Medicaid;

2. Be:

a. sixty-five (65) years of age or older, or

b. nineteen (19) to sixty-four (64) years of age and:

- 1 (1) be a physically disabled adult, as determined by
2 the Social Security Administration, ~~age twenty-~~
3 ~~one (21) years or older without~~
- 4 (2) have a developmental disability; provided, the
5 individual does not have an intellectual
6 disability or cognitive impairment related to the
7 developmental disability, or
- 8 (3) have a clinically documented, progressive, and
9 degenerative disease that responds to treatment
10 and previously required hospital or long-term
11 care facility level of care to maintain the
12 treatment regimen to prevent health
13 deterioration;

14 3. Be determined to meet the nursing facility institutional
15 level of care by the ~~Aging Services Division of the~~ Department of
16 Human Services;

17 4. Reside in his or her own home ~~or,~~ a family member's home, or
18 an assisted living center contracted with the Department of Human
19 Services under the ADvantage Waiver Program; and

20 5. Have needs that can be safely met with waiver services and
21 family or community supports.

22 SECTION 2. This act shall become effective July 1, 2026.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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4 60-2-17305 MAH 04/06/26

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